

HOUSE No. 1585

The Commonwealth of Massachusetts

PRESENTED BY:

Bruce J. Ayers

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to air traffic safety.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Bruce J. Ayers</i>	<i>1st Norfolk</i>	<i>1/15/2025</i>

HOUSE No. 1585

By Representative Ayers of Quincy, a petition (accompanied by bill, House, No. 1585) of Bruce J. Ayers for legislation to establish penalties for interfering with aircraft in flight by use of a laser pointer. The Judiciary.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 1387 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to air traffic safety.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 269 of the General Laws is hereby amended by adding the following section:-

2 Section 20. (a) As used in this section, the following terms shall have the following
3 meanings, unless the context clearly requires otherwise:-

4 “Laser pointer”, any device designed or used to amplify electromagnetic radiation by
5 stimulated emission that emits a beam designed to be used by the operator as a pointer or
6 highlighter to indicate, mark, or identify a specific position, place, item, or object.

7 “Unmanned aerial vehicle”, an aircraft that is operated without the possibility of direct
8 human intervention from within or on the aircraft.

(b) Whoever knowingly aims the beam of a laser pointer at an aircraft in the special jurisdiction of the United States, or at the flight path of such an aircraft, or operates an unmanned aerial vehicle in said flight path, or otherwise interferes with an aircraft in flight, on or over the territory of the commonwealth shall be guilty of interfering with an aircraft pursuant to this section, and shall be punished by a fine of not more than \$1,500.

(c) Whoever knowingly directs a laser pointer at an aircraft or operates an unmanned aerial vehicle within the flight path of an aircraft, or otherwise interferes with an aircraft in flight, and causes a significant change of course or other serious disruption to the safe travel of an aircraft that threatens the physical safety of the aircraft's passengers or crew shall be guilty of interfering with an aircraft and causing harm pursuant to this section, and shall be punished by a fine of not more than \$5,000 or imprisonment in the state prison for not more than 5 years, or both such fine and imprisonment.

(d) This section does not prohibit directing a laser beam at an aircraft, or in the immediate vicinity of an aircraft, by:

(i) an authorized individual in the conduct of research and development or flight test operations conducted by an aircraft manufacturer, the Federal Aviation Administration, hereinafter the FAA, or any other person authorized by the FAA to conduct such research and development or flight test operations;

(ii) members or elements of the United States Department of Defense or the United States Department of Homeland Security acting in an official capacity for the purpose of research, development, operations, testing or training;

(iii) an individual using a laser emergency signaling device to send an emergency distress signal; or

(iv) an individual whose laser operations have been submitted to and reviewed by the FAA, when:

(A) the FAA has issued a letter not objecting to the laser use; and

(B) the laser is operated in conformity with the FAA submission.

(e) The use of an unmanned aerial vehicle shall comply with all FAA requirements and guidelines. This section does not prohibit the use of unmanned aerial vehicles by authorized persons consistent with said FAA requirements and guidelines.